"Under the Seventh Schedule of the Constitution, Parliament is allowed to draft legislation matters related to national security and armed forces. This bill does not limit judicial review and does not interfere with the judiciary's rights," Rai said.

However, the bill defends the "umbrella law" as an attempt to end recurring litigation. It also underscores the dual role of CAPFs—from border management and counterinsurgency to supporting the armed forces in times of war—while stating that the IPS has historically been part of their leadership structure. Aiming to strike a balance between equity and operational effectiveness, the bill also formalises essential service rules, enhances transparency in promotions, introduces fixed tenures, institutionalises grievance redressal mechanisms, and creates additional senior positions to address prolonged career stagnation.

RANKS AT ODDS

Despite these provisions, it remains debatable whether the bill addresses the concerns raised by CAPF officers over stagnant career prospects. That arose because the IPS officers are recruited through the Union Public Service Commission's (UPSC) Civil Services Examination while CAPF officers enter the forces via a separate UPSC process. Across the five principal forces—the Central Reserve Police Force (CRPF), Border Security Force (BSF), Indo-Tibetan Border Police (ITBP), Central Industrial Security Force (CISF) and Sashastra Seema Bal (SSB)—there are around 13,000 officers. Recruited at the rank of Assistant Commandant (AC), CAPF officers have long argued that their careers plateau early because key senior positions—Deputy Inspector General (DIG), Inspector General (IG) and Additional Director General (ADG)—are heavily staffed by IPS officers on deputation.

IPS officers currently have about 20 per cent quota in DIG posts and 50 per cent in IG posts. The bill formalises this, earmarking 50 per cent of IG posts and 67 per cent of ADG posts for IPS officers, while remaining silent on the DIG level—an omission that could leave some room for CAPF officers. ACs in the CRPF typically wait 15-16 years for their first promotion; in the BSF, the wait is around 12-13 years. IPS officers, by contrast, move far more quickly, usually spending about two years at a comparable rank and reaching IG in roughly 18 years—a level many CAPF officers never attain. "There are no personal grudges against IPS officers and they are experts in their domain of civilian policing," says Sanjiv Sood, a retired ADG in the BSF, who considers himself fortunate to have reached the second highest rank in the force. "The CAPFs perform tasks similar to the army, whether in counter-insurgency operations or guarding the border." Sood calls the denial of promotions "blatantly unfair", adding that the issue goes beyond pay. "ACs are serving in tough situations; many have even lost their lives."

While there are 57 OGASs, Sood notes that the five CAPFs have not been designated as OGAS. CAPF officers have faced hurdles in securing comparable career progression. The 2025 SC order had recognised them as OGAS, which should have enabled them to secure a Non-Functional Financial Upgrade (NFFU)—getting the salary of a certain rank even without formal promotion to that rank. The benefit is tied to the completion of a specified number of years in service. But the bill is silent on granting OGAS status to the five CAPFs.

IPS officers, however, describe the issue as administrative necessity. Senior roles in CAPFs, they argue, require experience that goes beyond force management, particularly when these units operate in civilian settings. "The government is absolutely right in its assessment to ensure the presence of IPS officers at senior ranks," says Sujoy Thaosen, who has served as DG of four CAPFs. "IPS officers are more equipped to manage not just members of the force but the general public as well," he explains. Others point to coordination challenges in the field. "IPS officers are better for ensuring coordination between Superintendents of Police, District Magistrates and other officers," says Shantanu Mukharji, a former IPS officer and former National Security Advisor, Mauritius. At the same time, he adds, the ministry "should ensure promotions for CAPF officers, by creating more posts so they don't get demotivated".

WHY CAPFs ARE UNHAPPY

- **The Central Armed Police Forces (General Administration) Bill formalises IPS dominance in CAPFs**
- **CAPF officers face promotion delays, with many never reaching IG rank; IPS officers advance far more quickly**
- **IPS officers have a 20% quota in DIG and 50% in IG posts; the bill locks in 50% of IG and 67% of ADG positions**
- **The government has defended the "umbrella law" as an attempt to end recurring litigation**

INSTITUTIONAL CROSSFIRE

It's been a long battle for recognition by the CAPF cadre. In 2012, CAPF officers moved the Delhi High Court, arguing that their slow career progression was largely due to senior posts being filled by IPS officers on deputation. The high court upheld their claim. The Centre challenged the verdict, but the SC ruled in favour of CAPF officers.

The issue now has spilled into the political arena. On March 16, Opposition leader Rahul Gandhi visited a CRPF mess in Delhi to meet Ajay Malik, an AC posted in the CRPF's Commando Battalion for Resolute Action (CoBRA), who lost his leg in an IED blast in Jharkhand. Gandhi assured Malik that he would raise the issue of promotions for CAPF officers.

For the government, the bill's passage may not be smooth. It could be referred to a select committee, where CAPF officers can press their case, according to experts. Legal options, too, remain open. With numbers on the CAPFs' side and power with the IPS, the government faces a tightrope walk. ■